

of such person or after an employee has voluntarily left such service, by any misrepresentation prevents or attempts to prevent the former employee from obtaining employment, is guilty of a misdemeanor.

Lab. Code § 1050.

Any person who knowingly causes, suffers, or permits an agent, superintendent, manager, or employee in his employ to commit a violation of sections 1050 and 1051, or who fails to take all reasonable steps within his power to prevent such violation is guilty of a misdemeanor.

Lab. Code § 1052

The Court notes that the First and Second Causes of Action already allege violations of Labor Code §§ 1050 and 1052, respectively, against both Jessica Larmour and Shascom. Defendant argues the Fifth Cause of Action is not pled as relying on either Labor Code § 1050 or § 1052. This is correct. While paragraph 106 of the complaint realleges and incorporates preceding allegations, the allegations of the Fifth Cause of Action do not reference or in any way make it apparent that Labor Code §§ 1050 and 1052 form the statutory basis for the Fifth Cause of Action. The Court finds that, as currently pled, Plaintiff has failed to state a claim for negligent supervision as alleged in the Fifth Cause of Action. Therefore, the Court will sustain the demurrer. Plaintiff has requested leave to amend. While Defendant has requested that leave to amend be denied, the Court is inclined to allow Plaintiff the opportunity to correct the deficiency, if he can.

The Demurrer to the Fifth Cause of Action is **SUSTAINED** with leave to amend. Plaintiff is given 15 days from the date of the notice of entry of order to file a first amended complaint. Defendant did not provide a proposed Order as required by Local Rule of Court 5.17(D). Defendant is to prepare the Order.

IN RE: GEBRESILASSIE

CASE NUMBER: 26CV-0210823

Tentative Ruling on Petition for Change of Name: Petitioner seeks to change her name from Leila Belay Gebresilassie to Leila Yasmin Yohannes and to also change the name of her minor daughter. The Certificate of Publication was filed on July 24, 2026. The Court is able to **GRANT** the Petition on behalf of the mother. However, when a petition to change the name of a minor is brought by one parent only, the non-petitioning parent must be personally served with the notice of hearing or order to show cause at least 30 days before the hearing date. See CCP § 1277(a)(4). A proof of service has not been filed indicating that the non-petitioning parent was personally served. As to the minor, the Court intends to **DENY** the Petition. Should Petitioner wish to have time to serve the non-petitioning parent, Petitioner request a future hearing date. Petitioner will be required to obtain an Amended Order to Show Cause with the new hearing date and serve that on the non-petitioning parent at least thirty days prior to the new hearing date. **An appearance by Petitioner is necessary on today's calendar to confirm whether Petitioner would like her Petition granted at this time and whether Petitioner seeks a continuance of the hearing to serve the non-petitioning parent.**

HOWLAND, ET AL. VS. SABET, ET AL.

CASE NUMBER: 25CV-0207803

Tentative Ruling on Motion to Strike: Plaintiffs David Howland and Lori Howland move to strike the Cross-Complaint filed by Defendants Farzad Sabet and Marikit Sabet on May 22, 2026. The Sabet Defendants oppose the motion.

As a preliminary matter, when reviewing this motion, the Court noticed that the clerk set aside the default at issue on February 23, 2026. This was a clerical error. While the parties discussed setting aside the default at the Mandatory Settlement Conference on February 23, 2026, no such order was made. The Court orders that the default was set aside effective April 6, 2026, which is the date the Court executed the Order to Set Aside Default. The clerk is directed to correct the date on the default set aside.